

Vinod Kumar vs The State Of Madhya Pradesh on 12 September, 2023

Author: Vishal Dhagat

Bench: Vishal Dhagat

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IN THE HIGH COURT OF MADHYA PRADESH
AT JABALPUR
BEFORE
HON'BLE SHRI JUSTICE VISHAL DHAGAT
ON THE 12th OF SEPTEMBER, 2023
MISC. CRIMINAL CASE No. 40304 of 2023

BETWEEN: -
VINOD KUMAR S/O SHRI RAGHURAJ SINGH, AGED
ABOUT 41 YEARS, OCCUPATION: FARMER R/O 6/4
WARD NO 09 MANGROL ROAD GHAT PIPARIYA TAHSIL
BARELI DISTRICT RAISEN (MADHYA PRADESH)

(BY SHRI SHAILENDRA K. GANGRADE - ADVOCATE)

AND
THE STATE OF MADHYA PRADESH THROUGH P.S.
BARELI DISTRICT RAISEN (MADHYA PRADESH)

(BY SHRI A.S.PATHAK - GOVT. ADVOCATE)

This application coming on for admission this day, the following:

ORDER

This is first application filed by the applicant under Section 438 of code of criminal procedure for grant of anticipatory bail relating to FIR No.200/2023 registered at Police Station-Bareli District-Raisen (M.P.) for the offences punishable under Sections 341, 435, 394 of Indian Penal Code.

2. Learned counsel appearing for the applicant submitted that applicant is innocent and has falsely been implicated in the case. It is submitted that offence under Section 341, 435 of IPC are bailable in nature. No offence of robbery has been committed by applicant. In these circumstances, applicant may be enlarged on anticipatory bail.

3 . Learned Govt. Advocate appearing for the State opposed the application for grant of anticipatory bail. It is submitted that applicant is mine owner and he arranged some boys for burning dumper

and trucks, which were going to mine of Satrawan. Applicant has planned this for regaining his business. It is submitted that Amit Thakur, Rajdeep and Rahul have burnt a truck pursuant to conspiracy had by the applicant and they had also looted an amount of Rs.10,000/-. In these circumstances, bail application may be dismissed.

4. Heard the learned counsel for the parties.

5. On going through the allegations made in the case diary, it is found that applicant has not told boys to commit robbery. They while burning the truck has committed robbery. Offence under Section, 435 of IPC is bailable.

6. Considering aforesaid facts and circumstances of the case, anticipatory bail application filed by the applicant is allowed. It is directed that in the event of arrest of applicant in connection with the aforesaid crime number and the offences, he be released on anticipatory bail on his furnishing a personal bond in the sum of Rs.50,000/- (Rupees Fifty Thousand only) with one solvent surety of the like amount to the satisfaction of the Investigating Officer/Arresting Authority.

7. The applicant is directed to join the investigation immediately and to co-operate with the investigating agency. He will further abide by the condition enumerated in sub-section (2) of Section 438 of the Cr.P.C.

Certified copy as per rules.

(VISHAL DHAGAT) JUDGE nd